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File No.: EXP202308186

SANCTIONING PROCEDURE RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party), and noting indications of a possible breach of the regulations within the competencies of the Spanish Agency for Data Protection, actions were initiated under file number EXP202210932.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the responsible party or the Data Protection Officer designated, requesting them to send this Agency the information and documentation indicated.

SECOND: On November 28, 2022, a response was received from the complained entity, registered with entry numbers REGAGE22e00054090973 and REGAGE22e00054091729, in which it indicates the following:

"The complaint has arisen because it seems that Ms. A.A.A., on different dates, has received commercial calls in the name of Vodafone, from the calling numbers (...) ***PHONE.1 (...). According to the information available in the Register of Numbers and Telecommunications Operators of the National Commission of Markets and Competition (CNMC), the indicated numbers previously belong to the following operators; (...) ***PHONE.1 to Vodafone ONO; (...).

After conducting the appropriate checks, we have verified that the telephone lines of the complainant, ***PHONE.2, ***PHONE.3, and ***PHONE.4, are listed in the official Robinson list of ADigital and in Vodafone's internal Robinson list. These numbers, according to the CNMC register as of November 28, 2022, belong to VODAFONE ENABLER.

(...)

We have checked whether the calling numbers indicated in the information request are listed in our database with the telephone numbers that our collaborators use to make solicitation calls. To this end, we have verified that the numbers associated with our collaborators who make solicitation calls on behalf of Vodafone are not present in our database. Therefore, it does not seem possible to relate the receipt of the calls that Ms. A.A.A. indicates in her complaint with my represented party.

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(...)

On the other hand, a single database has been created with the list of telephone numbers that each collaborator, distributor, or provider dedicated to solicitation tasks uses in the performance of these services, in order to identify who is responsible for such calls. It is in Vodafone's interest to ensure that these companies do not use numbers other than those of Vodafone and that all are clearly identified and linked to the entity that uses them.

(...)

Furthermore, Vodafone has currently ceased working with those entities that have repeatedly breached the contractual obligations established by Vodafone, as well as the legal provisions regarding data protection, and is in the process of selecting those collaborators who guarantee full compliance with current regulations.

THIRD.- The Agency requests certain information for cases where the call has been made by a third party.

Since the calling numbers indicated by Ms. A.A.A. in her complaint are not present in our database of

telephone numbers used by our collaborators to make solicitation calls, the provision of information is not considered pertinent.

FOURTH.- The Agency requests information regarding the “DECISION ADOPTED REGARDING THE COMPLAINT.”

As Document number 5, a copy of the letter prepared for Ms. A.A.A. is provided, informing her of the actions taken by my represented party to resolve her complaint. In this regard, the letter informs the complainant that currently there are no data linked to her ID in Vodafone's systems. However, there are data linked to her ID in the systems of Vodafone Enabler (Lowi), as she has active services with this brand.

Additionally, Document number 6 is attached, which is an internal report confirming the deletion of the complainant's data in Vodafone's systems.”

The complaint was accepted for processing on December 2, 2022.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the investigative powers granted to the control authorities in Article 57.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the aforementioned LOPDGDD.

In the framework of the investigation actions, three information requests were sent to the complained party, relating to the complaint mentioned in the first section, for them to submit to this Agency the information and documentation indicated within ten working days. The requests were registered for dispatch on February 13, 2023, March 24, 2023, and May 12, 2023.

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Specifically, information was requested on three occasions regarding the following:

- Confirmation of the call made from line ***TELÉFONO.1 to the number ***TELÉFONO.2 on June 16, 2022, between the hours of 12:00 and 14:00.
- Confirmation of the call made from line ***TELÉFONO.1 to the number ***TELÉFONO.3 on June 16, 2022, between the hours of 12:00 and 14:00.
- Confirmation of the call made from line ***TELÉFONO.1 to the number ***TELÉFONO.4 on June 16, 2022, between the hours of 12:00 and 14:00.

FOURTH: The information requests, which were notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were received by the responding party on February 22, 2023, March 29, 2023, and May 16, 2023, as evidenced by the acknowledgments of receipt in the file.

FIFTH: In response to the information requests sent to the responding party, asking for confirmation of the receipt at the claimant's numbers of the calls made from line ***TELÉFONO.1, the responding party limited itself to replying, with registered entries dated March 8, 2023, and registration number REGAGE23e00014439154, and dated May 22, 2023, and registration number REGAGE23e00032372663, that the calling number belongs to another operator since May 2021. The responding party has not provided the requested information to this Spanish Agency for Data Protection.

SIXTH: VODAFONE ESPAÑA, S.A.U. is part of the business group VODAFONE GROUP PLC, which has an annual turnover of 45,706 million euros, according to the financial results published by the entity itself in its annual report for the fiscal year 2023.

SEVENTH: On September 19, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the responding party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public

Administrations (hereinafter, LPACAP), for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

EIGHTH: The aforementioned initiation agreement was received by the responding party on September 27, 2023, as evidenced by the acknowledgment of receipt in the file.

NINTH: On September 27, 2023, documents were submitted, registered with entry numbers REGAGE23e00064771967 and REGAGE23e00065138852, in which the responding party requests an extension of the initially granted deadline for the...

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formulation of allegations and access to the complete file of the present procedure.

This Agency facilitated access to the file and agreed to extend the deadline for formulating allegations by a maximum of five days, counted from the day following the end of the first deadline for allegations.

TENTH: On October 5, 2023, a registered entry document was submitted with number REGAGE23e00067574223, in which the responding party claims that the documents and other investigations carried out by this Agency regarding the third parties involved in this investigation were not provided and again requests full access to the file.

This Agency responded that file EXP202210932 is independent of the present sanctioning procedure and that the investigative actions of said file concerning third parties are unrelated to the basis of the present sanctioning procedure, therefore they have not been incorporated into it, and there is no additional documentation beyond that included in the previously submitted file.

ELEVENTH: On October 19, 2023, allegations were submitted regarding the initiation agreement in a registered entry document with number REGAGE23e00070808627 in which the responding party states that this Agency denied them access to a copy of the complete present file.

Furthermore, firstly, the responding party states that they have collaborated at all times with this Agency and that at no point have they intended to obstruct the investigation, but rather to comply with all legal requirements that, as a telecommunications operator, are demanded of them.

Thus, the responding party states that the calling line ***PHONE.1 and the calls ***PHONE.2, ***PHONE.3, and ***PHONE.4 are owned by them, according to the information available in the National Commission of Markets and Competition's Registry of Numbering and Operators.

Regarding the calling number ***PHONE.1, the responding party states that they informed this Agency that it "belonged to the reseller Akra Leuka Consulting, S.L., with CIF B54498688 (hereinafter, 'Akra Leuka Consulting'). With this information, we assume that the Agency sent an information request to Akra Leuka Consulting, which must have indicated that the final holder of the line was the company JESCOM SARL AU. This information is inferred from the Resolution of Archive of June 20, 2023 (hereinafter, the 'Resolution of Archive'), since the Agency has not provided these investigations as part of the file of this procedure, despite the requests sent by my represented party, limiting access to information and therefore the defense capacity of Vodafone."

Therefore, the responding party states that said line was not owned by Vodafone since May 25, 2021, when it was ported to the aforementioned reseller. As proof, the responding party provides a screenshot from that reseller for fixed portability. They also provide a capture of the webpage of the Operators Registry of the Commission.

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National Commission of Markets and Competition where it is observed that Akra Leuka Consulting, S.L. is registered as a reseller.

The responding party continues by stating that, to the extent that the numbering belonged to the reseller Akra Leuka Consulting, S.L., it could not obtain the information regarding the calls sent from line ***PHONE.1 that this Agency required. In the event that the intent of this Agency's request was to ask for confirmation of the receipt on the claimant's line of the call made from line ***PHONE.1, it adds, that information would pertain to incoming traffic data, information that is specially protected, it emphasizes, by the Data Retention Law.

Regarding traffic information, the responding party comments that "to access the system in which this information is archived, a judicial authorization is required in accordance with the provisions of Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks (hereinafter, "Retention Law"), specifically its article 1, the obligation to provide such traffic data, as well as location data concerning natural and legal persons, operates only when carried out by authorized agents, and always when requested through the corresponding judicial authorization. Furthermore, article 6.2 of the Retention Law enumerates who the authorized agents are, specifically:

- a) "Members of the Security Forces and Corps, when performing judicial police functions, in accordance with the provisions of article 547 of Organic Law 6/1985, of July 1, on the Judiciary.
- b) Officials of the Deputy Directorate of Customs Surveillance, in the exercise of their competencies as judicial police, in accordance with paragraph 1 of article 283 of the Criminal Procedure Law.
- c) Personnel of the National Intelligence Center during security investigations concerning individuals or entities, in accordance with the provisions of Law 11/2002, of May 6, regulating the National Intelligence Center, and Organic Law 2/2002, of May 6, regulating the prior judicial control of the National Intelligence Center."

In this regard, this legal reasoning has been defended by my client on other occasions concerning traffic data, such as, for example, in the request with reference number EXP202211234, in which the following was alleged before the Agency:

Vodafone has a tool to manage, solely and exclusively, the requests for information received through judicial or police requests that involve traffic information. Only through these mechanisms is Vodafone authorized to access this information. It must be taken into account that the use of such tools is extremely sensitive, and can only be employed in very exceptional cases, always when accompanied by a prior judicial or police information request before accessing the requested information.

[...]

For all these reasons, and as stated in the previous allegations by my client, the exclusion of the duty of cooperation by Vodafone, as set forth in article 52.3 of Organic Law 3/2018, of December 5, would apply.

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Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), which reserves the transfer of data solely for the fulfillment of the obligations established in Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, and with prior judicial authorization requested by one of the authorized agents.

[...]

In this regard, my represented party requests this Agency to justify, to the extent possible, the reason why it considers that the alleged exception does not apply. This justification will be necessary insofar as the tool used to obtain traffic information has, due to the type of information it stores, a series of extremely high security, control, and monitoring measures. Both the system and the implemented measures are audited frequently, and during these audits, the reason for certain queries can be requested, the reasons for which are specified. Therefore, in terms of strict defense, my represented party would need to provide a legal justification from the requesting entity for having accessed the system, processed traffic data, and communicated such information.

In short, the responding party concludes that it could not provide the requested traffic data without the

proper judicial authorization. Furthermore, it adds that the responsibility for the calls made by the reseller's customers lies entirely with Akra Leuka Consulting, S.L.

The responding party reiterates that it has always sought collaboration with this Agency and that on occasions when it has been requested for information regarding calls made from its lines, which information can be confirmed by reviewing the billing without accessing traffic data, it has sent such information to the Agency, as, for example, it states, in the request with reference number EXP202102025, whose allegations have an entry registration number of REGAGE22e00016210068. Secondly, the responding party argues that if it had provided the requested information, contravening the obligations of the data retention regulations, the outcome of the Agency's investigation would not have changed, as it states that the holders of the numbers that made the calls subject to the investigation have not responded to the requests from this Agency.

Thirdly, the responding party notes, subsidiarily, and in the event that this Agency understands that it has violated Article 58.1 of the GDPR, that the existence of culpability in the alleged infringements cannot be appreciated and, consequently, it states, no sanction can be imposed on it, according to Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector.

Moreover, it continues, following the interpretation made by the Supreme Court, for exculpation, it will not be sufficient to invoke the absence of fault, but it will be necessary to have exercised the diligence that was required by the party claiming its non-existence (among others, the Judgment of the Supreme Court of January 23, 1998 [RJ 1998\601]). In this regard, the responding party asserts that it has acted at all times in collaboration with this Agency, fulfilling the due diligence required of it, and cannot be attributed, it states, any culpability.

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Fourthly, the respondent indicates, in the alternative, that in the event this Agency finds that an infringement has occurred and a sanction must be imposed, it should be mitigated downwards considering mitigating circumstances. Thus, it reiterates that it acted in compliance with the Conservation Law. Furthermore, it adds that its degree of cooperation during the prior inspection proceedings was high, as evidenced by all the responses made to the information requests and the information provided, which, it adds, allowed this Agency to identify those responsible for the calls, having concluded the investigation, it asserts, for reasons unrelated to its participation in the investigation. Finally, the respondent states that it has not obtained any benefit or avoided losses as a result of the alleged lack of cooperation.

In light of all the above, the respondent requests the filing of these proceedings on the grounds that, it states, none of the alleged infringements have been committed and, in the alternative, that if any sanction is imposed, it should be set at the minimum amount.

TWELFTH: On January 11, 2024, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection sanction the respondent for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €200,000.00. This resolution proposal was duly notified to the respondent on January 17, 2024, as evidenced by the acknowledgment of receipt in the file.

THIRTEENTH: On January 18, 23, and 26, 2024, entries were registered with numbers REGAGE24e00004378839, REGAGE24e00005285077, and REGAGE24e00006323677, in which the respondent requests an extension of the initially granted deadline for the maximum time allowed by current legislation, under Article 32 of the LPACAP.

This Agency agreed to extend the deadline for submitting allegations by a maximum of five days, calculated from the day following the end of the first deadline for allegations.

FOURTEENTH: On February 7, 2024, and with entry registration number REGAGE24e00009843778, the respondent submitted a written statement of allegations regarding the Resolution Proposal, in which it states, "without prejudice to referring to what has been presented in the allegations submitted regarding the Initiation Agreement," the following.

In the First Allegation, the respondent reiterates that it has not infringed Article 58.1 of the GDPR, that it has cooperated at all times with the Agency, and that at no point, it states, has it intended to obstruct the investigation, but rather to comply with all legal requirements that, as a telecommunications operator, are demanded of it.

Regarding the duty of cooperation, the respondent disagrees with this Agency's assertion that in this case the exclusion of the duty of cooperation imposed by Article 52 of the LOPDGDD does not apply, since it cannot be accepted that the mere confirmation that a...

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A specific call between two numbers may be considered as traffic data processed "exclusively" to comply with the obligations set forth in Law 25/2007. On the contrary, the responding party understands that "this information is protected to be offered solely and exclusively to authorized agents through information requests received via judicial or police requirements that involve traffic information. Consequently, Vodafone could not provide the data requested by the Agency without, as a result, accessing such traffic data. Furthermore, and stated in terms of strict defense, the responsibility for the calls made by the reseller's customers lies entirely with Akra Leuka Consulting, which can confirm this information, not Vodafone.

On the other hand, the Agency, in the Proposal for Resolution, indicates that "[...] Article 52 of the LOPDGDD expressly provides within the duty of collaboration that, in the event that the conduct was carried out using a fixed or mobile telephone service, information must be provided regarding '3. The mere confirmation that a specific call was made between two numbers on a certain date and time.' [...] it was not being requested to transfer specific data, but merely the confirmation."

In this regard, my represented party does not deny the validity of this article, but rather analyzes it in conjunction with Law 25/2007, of October 18, on data retention (hereinafter, the "Data Retention Law"). As a result, in certain cases, where access to traffic data is not involved, confirmation of call completions has been provided to the Agency, as, for example, indicated in the allegations to the Initiation Agreement, in the request with reference number EXP202102025, whose allegations have an entry registration number of REGAGE22e00016210068.

In short, Vodafone has not violated Article 58.1 of the GDPR and has offered the Agency the information available in its systems that it is authorized to communicate in compliance with the multiple legal obligations that are required of it as a communications operator."

In Allegation Two, the responding party reiterates that, had it provided the requested information, contravening, it says, the obligations of the data retention regulations, the outcome of the investigation would not have changed, since the holders of the numbers that made the calls subject to the investigation have not responded to the requests of this Agency.

In this regard, the responding party points out that "there has been no intention to question the Agency's ability to determine the necessity of the requested information, but rather to emphasize that the severity of the potential infringement, if considered as such, should be reduced, since the Agency, even if my represented party had provided the requested information, would not have been able to confirm the reason for it, nor could it conclude the original reason for this process, which is the execution of commercial communications to the line of Ms. A.A.A., nor sanction or warn those responsible for the same as they are outside the territorial jurisdiction of the AEPD."

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In Allegation Three, the responding party claims that it has implemented monitoring and auditing systems to control unauthorized, illegal, or fraudulent activity concerning commercial calls.

According to the responding party, "this procedure arises from a series of commercial calls claimed by

Ms. A.A.A., calls that were not authorized by Vodafone and that were executed illegitimately or fraudulently. In this regard, my client has implemented numerous controls for the monitoring and auditing of these practices. Among other measures, Vodafone has implemented routing systems, sales audits, etc., measures that have been communicated to this Agency during other proceedings. However, in this case, it is important to highlight the “Code of Ethics in Commercial Contact Operations” (hereinafter, the “Code of Conduct”), signed by the main operators in the Spanish market on July 19, 2021. This Code of Conduct establishes that the signatories agree to mutual collaboration for the investigation and adoption of corresponding measures in cases where an irregular practice is identified, such as the case analyzed in this procedure. This measure demonstrates the diligence implemented by my client to control, monitor, and implement the necessary measures to minimize these practices.”

In Allegation Four, the responding party again states that, “Subsidiarily, in the event that the Agency understands that Vodafone has violated Article 58.1 of the GDPR, the existence of culpability in the infringements attributed to Vodafone cannot be appreciated, and consequently, no sanction can be imposed on it.”

Against the dismissal by this Agency of the lack of culpability considering that the responding party did not adequately respond to the requests made, thus calling into question the diligence employed, the responding party alleges that “it did adequately respond to the information requests, complying with the regulations it considers applicable, specifically, the Data Retention Law. Furthermore, it has acted with due diligence, not only complying with the applicable regulations but also implementing measures to control unauthorized calls made by third parties unrelated to my client, such as, for example, through the collaborative processes of the Code of Conduct.

Consequently, Vodafone has acted at all times in compliance with the due diligence required of it, and no culpability can be attributed to it.”

In Allegation Five, the responding party points out that, “Subsidiarily, in the event that the Agency understands that there has been an infringement and a sanction must be imposed on Vodafone, the following aggravating and mitigating circumstances should be taken into account.”

Regarding the aggravating factor of negligence in the infringement, the responding party reiterates that it acted in compliance with the Data Retention Law. Thus, it states that “not

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could provide the requested traffic data without the proper judicial or police authorization. It should not be understood that Vodafone's motivation in denying such information is due to a malicious and intentional intent to hinder the Agency's investigation, as Vodafone has cooperated at all times in this investigation by responding to all possible information requests. Furthermore, it should be noted that the information requested from my client would not change the results of the investigation, since, as indicated by the AEPD in its resolution of closure, it would not clarify whether the reason for the calls was commercial in order to conclude an infringement of the LGTel or RGPD.”

The respondent also insists that this Agency did not apply when evaluating the sanction “The degree of cooperation with the control authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement.” In this regard, it reiterates that its degree of cooperation during the preliminary inspection proceedings was high, as evidenced by all the responses made to the information requests and the information provided, which led, it says, to this Agency being able to identify those responsible for the calls, having concluded the investigation, it claims, for reasons unrelated to its participation in the investigation. Additionally, the respondent states that, “in order to remedy this type of infringement, my client has implemented monitoring and auditing measures to control unauthorized, illegal, or fraudulent activity regarding commercial calls.”

In light of all the above, the respondent requests that the case be dismissed with the consequent closure of the proceedings, as no of the alleged infringements have been committed and that, subsidiarily, in the event that any sanction is imposed, it should be set at the minimum amount, in light of the mitigating circumstances indicated and the appropriate delineation of responsibility in the processing of personal data of the affected parties involved.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

FIRST: The information requests indicated in the third and fourth antecedents were notified to the respondent in accordance with the provisions of the LPACAP and recorded as evidenced by the acknowledgments of receipt in the file.

SECOND: To the requests asking for confirmation of the receipt of calls made to the claimant's numbers from the line ***PHONE.1, the respondent limited itself to responding that the calling number belonged to another operator since May 2021, despite having the requested information as VODAFONE ESPAÑA, S.A.U. is the entity that operates the claimant's numbers through one of its brands (LOWI).

THIRD: The notification of the agreement to initiate the present sanctioning procedure was received by the respondent on September 27, 2023.

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FOURTH: The respondent has submitted allegations regarding the initiation agreement of this sanctioning procedure as described in the eleventh background.

FIFTH: The notification of the proposed resolution of this sanctioning procedure was collected by the respondent on January 17, 2024.

SIXTH: The respondent has submitted allegations regarding the proposed resolution of this sanctioning procedure as recorded in the fourteenth background.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations regarding the initiation agreement

In response to the allegations presented by the respondent, the following should be noted.

Regarding the assertion that this Agency denied the respondent access to the complete file of this case, thereby limiting their ability to defend themselves, it has already been indicated that the file of this procedure was sent in full and properly. The documents and other investigations conducted regarding the third parties involved in the investigation that the respondent requested are unrelated to the basis of this sanctioning procedure and are part of another file, number EXP202210932, which is independent of this one. As can be inferred from the allegations presented, the respondent was aware of the information that was requested from them, and the lack of submission of this information is the origin of this sanctioning procedure. They have had the opportunity to present any allegations and evidence they deemed appropriate for their defense, thus no defenselessness has occurred.

Regarding the respondent's assertion that, had they provided the requested information, the outcome of the Agency's investigation would not have changed, it should be noted that the infringing act is completed by the failure to respond to the requested information and is not conditioned on the potential consequences of their failure to comply. It is the responsibility of this Agency to assess the necessity for the...

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Investigation of the required information at the time it is requested. The contrary would imply accepting that it is not possible to demand compliance with the legal obligation to respond to the information requests of this Agency as long as the proceedings are not concluded and the outcome is determined. Regarding the argument of the respondent that, in application of Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, it could not provide this Agency with the requested data without the proper judicial authorization, it is noted that in this case the aforementioned exclusion from the duty of cooperation imposed by Article 52 of the LOPDGDD does not apply, since it cannot be accepted that the mere confirmation of a specific call made between two numbers can be considered as traffic data processed "exclusively" to comply with the obligations set forth in Law 25/2007.

In this regard, Article 52 of the LOPDGDD expressly provides within the duty of cooperation that, in the event that the conduct was carried out using a fixed or mobile telephone service, information must be supplied regarding "3. The mere confirmation that a specific call has been made between two numbers on a certain date and time."

In the currently disputed case, what was being requested was not the transfer of specific data, but merely the confirmation of information that the AEPD already had and that it transmitted to VDF for the purpose of confirmation, since the AEPD was aware of the calling number, as well as the specific time and date when that call was made to the claimant's number.

And all of this in addition to the fact that this confirmation of information is expressly provided for and determined by the legislator within the duty of cooperation of the aforementioned Article 52 of the LOPDGDD.

Regarding the inability to appreciate the existence of culpability, it is recalled that, indeed, the principle of responsibility set forth in Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, states that: "Only individuals and legal entities, as well as, when a law recognizes them the capacity to act, groups of affected parties, unions and entities without legal personality, and independent or autonomous assets, that are responsible for the same by way of intent or negligence, may be sanctioned for acts constituting administrative infractions."

However, according to the ruling in STS 7887/2011 of November 24, 2011, Rec. 258/2009, "(...) since its ruling 76/1990, of April 26, the Constitutional Court has declared that objective or non-fault liability is not applicable in the administrative sanctioning sphere, a doctrine that is reaffirmed in ruling 164/2005, of June 20, 2005, whereby the possibility of imposing sanctions solely based on the result is excluded, without proving a minimum level of culpability even in terms of mere negligence. However, the method of attributing responsibility to legal entities does not correspond to the forms of intentional or negligent culpability that are attributable to human conduct."

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It follows that, in the case of infringements committed by legal entities, although the element of culpability must be present (see the ruling of this Chamber of the Supreme Court dated November 20, 2011 (appeal for cassation in the interest of the law 48/2007), it is necessarily applied differently than it is with natural persons. According to STC 246/1991, "(...) this distinct construction of the attribution of the authorship of the infringement to the legal person arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the rules to which they are subject. The capacity for infringement and, therefore, direct reproachability derives from the legal right protected by the rule that is infringed and the necessity for that protection to be genuinely effective, as well as the risk that, consequently, the legal person subject to compliance with that rule must assume."

To the above, it should be added, following the ruling of January 23, 1998, partially transcribed in STS 6262/2009, of October 9, 2009, Rec 5285/2005, and STS 6336/2009, of October 23, 2009, Rec

1067/2006, that “although the culpability of the conduct must also be subject to proof, it should be considered in terms of the assumption of the corresponding burden, that ordinarily the volitional and cognitive elements necessary to appreciate it form part of the proven typical conduct, and that their exclusion requires evidence of the absence of such elements, or in its normative aspect, that due diligence has been exercised by the party claiming its non-existence; it is not sufficient, in summary, for exculpation against a typically unlawful behavior to invoke the absence of fault.”

Therefore, the lack of culpability is dismissed since the responding party did not adequately respond to the requests made by this Agency, thereby calling into question the diligence employed.

Finally, the absence of benefits cannot be considered a mitigating factor according to the Judgment of the AN, dated 05/05/2021, rec. 1437/2020, which states: “On the other hand, it considers that the non-commission of a previous infringement should be appreciated as a mitigating factor. Well, Article 83.2 of the GDPR establishes that the following circumstance must be taken into account for the imposition of the administrative fine, among others: 'e) any previous infringement committed by the controller or the processor.' This is an aggravating circumstance; the fact that the prerequisite for its application does not exist means that it cannot be taken into consideration, but it does not imply or allow, as the claimant intends, its application as a mitigating factor”; applied to the case under review, the lack of the prerequisite for its application regarding Article 76.2.c) of the LOPDGDD, that is, obtaining benefits as a consequence of the infringement, does not allow its application as a mitigating factor.”

This criterion of gradation is established in the LOPDGDD in accordance with the provisions of Article 83.2.k) of the GDPR, according to which administrative fines will be imposed taking into account any “aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement,” understanding that avoiding a loss has the same nature for these purposes as obtaining benefits.

If we add to this that the sanctions must be “in each individual case” effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR,

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Admitting the absence of benefits as a mitigating factor is not only contrary to the factual premises contemplated in Article 76.2.c), but also contrary to what is established in Article 83.2.k) of the GDPR and the principles indicated. Thus, valuing the absence of benefits as a mitigating factor would nullify the deterrent effect of the fine, as it diminishes the impact of the circumstances that effectively influence its quantification, providing the responsible party with a benefit they have not earned. It would be an artificial reduction of the sanction that could lead to the understanding that violating the regulation without obtaining benefits, whether financial or of any other kind, would not produce a negative effect proportional to the severity of the infringing act.

In any case, the administrative fines established in the GDPR, in accordance with what is established in Article 83.2, are imposed based on the circumstances of each individual case and it is not considered that the absence of benefits is an adequate and determining factor for assessing the severity of the infringing conduct. Only in the case that this absence of benefits is relevant for determining the degree of unlawfulness and culpability present in the specific infringing action can it be considered as a mitigating factor, in application of Article 83.2.k) of the GDPR, which refers to “any other aggravating or mitigating factor applicable to the circumstances of the case.”

For all these reasons, the request of the accused party regarding the filing of this sanctioning file cannot be granted, nor can the reduction of the initially proposed sanction based on the indicated mitigating factors.

III

Allegations to the Proposal for Resolution

In response to the allegations against the Proposal for Resolution of this file presented by the accused party, the following should be noted.

The allegations presented against the Proposal for Resolution of this file largely reproduce the same arguments put forward against the Initiation Agreement and which have therefore already been addressed by this Agency in the previous legal basis, so, where applicable, the corresponding references will be made to it.

Regarding the First Allegation, concerning the disagreement expressed by the accused party regarding this Agency's assertion that in the present case the exclusion from the duty of cooperation imposed by Article 52 of the LOPDGDD does not apply, reference is made to what was indicated in the previous legal basis, to which it is pertinent to add the following.

When the request was made within the framework of the investigation, the accused party motivated their lack of response to the requested information by stating that said line had belonged to another operator since May 2021.

Thus, at that time, the accused party did not argue otherwise, nor did they state in their response that they could not provide the information in accordance with Law 25/2007,

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the argumentation presented in the current sanctioning procedure. That is to say, when the connection to its own actions is unfavorable to it, upon the initiation of a sanctioning procedure. If the reason why the respondent claims it could not provide the information is related to Law 25/2007, it is inconsistent that it provided a different response, which did not address what was asked in the request. All of this demonstrates a lack of willingness to cooperate in providing mere confirmation of the existence of the call.

Regarding Allegation Two, in response to the argument of the respondent that, had it provided the requested information, the outcome of the investigation would not have changed, and thus the severity of the potential infringement, it states, should be reduced, concerning what has already been explained in the previous legal basis, it should be emphasized that the reason for this sanctioning procedure is not the making of commercial communications to Ms. A.A.A. Specifically, this procedure is initiated for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, for failing to provide the required information for the exercise of this Agency's functions. Therefore, as already indicated, the infringing type is completed with the lack of response to the requested information and is not conditioned on the eventual consequences of its non-compliance.

As for Allegation Three, the fact that the respondent has implemented monitoring and auditing systems to control unauthorized, illegal, or fraudulent activity concerning commercial calls, as well as having subscribed to the Code of Ethics in Commercial Contact Operations, is not related to the infringement being processed in this procedure, which is not the making of commercial calls, but rather the failure to provide access to the required information in violation of Article 58.1 of the GDPR, and therefore cannot be considered as a mitigating factor.

Regarding Allegation Four, concerning the respondent's opinion that the existence of culpability cannot be appreciated since it did respond, it states, adequately to the information requests, complying with the regulations it considers applicable, specifically, the Data Retention Law, reference is made to what has already been stated in the previous legal basis.

Concerning Allegation Five, on the aggravating and mitigating circumstances referred to by the respondent, the following is indicated.

Regarding the aggravating factor of negligence in the infringement, reference is made to what was stated in the previous legal basis.

In relation to this Agency not considering "the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement" when assessing the sanction, the respondent adds that, "in order to remedy this type of infringement, my client has implemented monitoring and auditing measures to control unauthorized, illegal, or fraudulent activity concerning commercial calls." In this regard, it is reiterated that the infringement for which this procedure is being instructed, as clearly stated in the foundations dedicated to the

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The obligation that has not been fulfilled, its classification and sanction, is that of not providing access to the required information and not making commercial calls. Therefore, the aforementioned measures are not related to the possible mitigation of the effects of the infringement. Additionally, it cannot be considered a possible mitigating factor a cooperation consisting of applying the necessary measures to control an unlawful activity, since this is a duty imposed on the data controller, which is even more emphasized within the framework of the principle of proactive responsibility developed by the GDPR. For all the above reasons, the request of the respondent party regarding the filing of the present sanctioning file cannot be granted, nor can the reduction of the initially proposed sanction based on the indicated mitigating factors.

IV

Obligation not fulfilled

In light of the facts presented, it is considered that the respondent party has not provided the Spanish Agency for Data Protection with the information it requested.

The respondent entity did not respond to the requests made by this Agency in order to confirm the receipt of the calls made to the complainant's numbers, limiting itself to stating that the calling number belonged to another operator, instead of answering the question of whether the calls had been received or not, information that must be known since VODAFONE ESPAÑA, S.A.U. is the entity that operates the complainant's numbers through one of its brands (LOWI).

With the aforementioned conduct of the respondent party, the investigative power that Article 58.1 of the GDPR confers on supervisory authorities, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement, attributable to the respondent party, for violation of Article 58.1 of the GDPR, which provides that each supervisory authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of their tasks; b) to conduct investigations in the form of data protection audits; c) to review the certifications issued pursuant to Article 42, paragraph 7; d) to notify the controller or the processor of the alleged infringements of this Regulation; e) to obtain from the controller and the processor access to all personal data and all information necessary for the performance of their tasks; f) to obtain access to all premises of the controller and the processor, including any equipment and means of processing data, in accordance with Union or Member State procedural law."

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Classification and qualification of the infringement

The facts presented are deemed to constitute an infringement, attributable to the respondent party. This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: "not providing access in violation of Article 58, paragraph 1."

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGD, which qualifies the following

conduct as very serious:

“ñ) Not providing access to the personal data, information, premises, equipment, and means of processing required by the competent data protection authority for the exercise of its investigative powers.”

VI

Imposed sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

In light of the facts presented, the sanction that would correspond to be imposed is an administrative fine in the amount of €200,000.00, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of that regulation.

It is noted that no mitigating factor is applicable, and the following facts have been considered as aggravating:

- Art. 83.2 b) GDPR: the intentionality or negligence in the infringement.

The respondent entity did not provide the required information in the requests from this Agency, citing a reason that does not justify the refusal to provide it. The confirmation of the receipt of the calls is a fact that must be known by the respondent since VODAFONE ENABLER (LOWI) is the operator of the complainant's numbers. The order to provide the information was reiterated without any response being given on either occasion to the question posed.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on VODAFONE ESPAÑA, S.A.U., with NIF A80907397, for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 200,000.00 euros (TWO HUNDRED THOUSAND euros).

SECOND: TO ORDER VODAFONE ESPAÑA, S.A.U., with NIF A80907397, that, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, it shall provide, within ten working days from the date this resolution becomes final and enforceable, the information requested in the requirements made in the framework of the proceedings numbered EXP202210932 and to which reference has been made in the background of this resolution.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

THIRD: NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that it must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000

(BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, presenting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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